MASTER SERVICES AGREEMENT

Vapi, Inc. and Example Corp

This Master Services Agreement (the "**Agreement**") is entered into as of **January 1, 2026** (the "**Effective Date**") by and between **Vapi, Inc.**, a Delaware corporation with its principal place of business in San Francisco, California ("**Vapi**"), and **Example Corp**, a Delaware corporation with its principal place of business in New York, New York ("**Customer**"). Vapi and Customer may be referred to herein individually as a "Party" and collectively as the "Parties."

1. Services

Vapi shall provide Customer with access to and use of Vapi's voice-AI platform (the "**Platform**"), which enables Customer to create, deploy, and operate voice-based conversational applications. The Platform includes (a) cloud-hosted access to Vapi's real-time voice infrastructure, (b) telephony connectivity, (c) integration with third-party large-language-model providers, and (d) related developer tooling, dashboards, and APIs (collectively, the "**Services**").

2. Term and Renewal

2.1 Initial Term. The initial term of this Agreement shall commence on the Effective Date and continue for a period of twelve (12) months, ending on December 31, 2026 (the "**Initial Term**"), unless earlier terminated in accordance with Section 8.

2.2 Renewal. Following the Initial Term, this Agreement shall automatically renew for successive twelve (12) month periods (each, a "**Renewal Term**") unless either Party provides written notice of non-renewal at least ninety (90) days prior to the end of the then-current term. Pricing for any Renewal Term shall be as set forth in Section 3 unless modified by written amendment.

3. Fees and Pricing

3.1 Platform Fee.

Customer shall pay a monthly platform fee of **$1,000.00 USD** per month (the "**Platform Fee**"), invoiced monthly in advance on the first business day of each calendar month during the Term. The Platform Fee provides access to the Platform infrastructure, dashboard, and standard developer tooling regardless of usage volume.

3.2 Voice Usage Fees.

In addition to the Platform Fee, Customer shall pay usage-based fees for voice-minute consumption ("**Usage Fees**"), calculated monthly based on actual minutes consumed during the prior calendar month and invoiced in arrears. Usage Fees are tiered as follows, measured cumulatively across the Term:

Tier	Cumulative Annual Volume	Rate per Minute
Tier 1	0 - 500,000 minutes	$0.05000

Tier 2	500,001 - 1,000,000 minutes	$0.04500
Tier 3	1,000,001+ minutes	$0.04000

Tier rate is determined retroactively at year end based on total minutes consumed during the Term; any rate true-up shall be reflected as a credit on the final invoice of the Term.

3.3 Annual Minimum Commitment.

Customer commits to a minimum of **$50,000.00 USD** in Usage Fees during the Initial Term (the “**Annual Minimum**”). For purposes of calculating the Annual Minimum, Platform Fees are excluded. If Customer’s actual Usage Fees during the Initial Term are less than the Annual Minimum, Customer shall pay the shortfall on the final invoice of the Initial Term.

3.4 Ramp Period.

The first thirty (30) days of the Initial Term (January 1, 2026 through January 30, 2026) shall constitute the “**Ramp Period**.” Usage Fees during the Ramp Period shall be invoiced at the standard Tier 1 rate, but Usage Fees actually consumed during the Ramp Period shall be **excluded** from the Annual Minimum calculation in Section 3.3. Platform Fees are not affected by the Ramp Period and shall be invoiced as set forth in Section 3.1.

3.5 Payment Terms.

All invoices are due net thirty (30) days from the invoice date. Past-due amounts accrue interest at 1.5% per month or the maximum rate permitted by applicable law, whichever is less.

3.6 Taxes.

Fees are exclusive of all applicable taxes, levies, and duties. Customer is responsible for all taxes other than those based on Vapi’s net income.

4. Service Levels and Credits

Vapi targets **99.9% monthly uptime** for the Platform’s real-time voice infrastructure (the “**SLA**”). For each 0.1% by which actual monthly uptime falls below the SLA, Customer is entitled to a service credit equal to **5% of the Platform Fee** for the affected month, up to a maximum credit of 50% of the Platform Fee per month. Service credits are Customer’s sole and exclusive remedy for SLA breaches and shall be applied as a reduction to the next month’s Platform Fee invoice. Service credits do not apply to Usage Fees.

5. Customer Responsibilities

Customer is responsible for (a) the lawful and acceptable use of the Platform in accordance with Vapi’s Acceptable Use Policy, (b) all content, data, prompts, and configurations submitted to or generated by Customer’s use of the Platform, and (c) maintaining the confidentiality of all access credentials issued to Customer.

6. Confidentiality

Each Party shall protect the Confidential Information of the other Party using the same degree of care it uses to protect its own Confidential Information of like nature, but in no event less than reasonable care. The receiving Party shall use Confidential Information solely for the purpose of performing under this Agreement.

7. Limitation of Liability

Except for breaches of confidentiality or indemnification obligations, neither Party's aggregate liability arising out of or related to this Agreement shall exceed the total fees paid by Customer to Vapi during the twelve (12) months preceding the event giving rise to the claim. In no event shall either Party be liable for indirect, incidental, special, or consequential damages.

8. Termination

8.1 Termination for Convenience. Either Party may terminate this Agreement upon **sixty (60) days' prior written notice** to the other Party. In the event of termination for convenience by Customer prior to the end of the Initial Term, Customer remains liable for the Annual Minimum, prorated based on the number of months elapsed in the Initial Term.

8.2 Termination for Cause. Either Party may terminate this Agreement immediately upon written notice if the other Party materially breaches this Agreement and fails to cure such breach within thirty (30) days after receiving written notice thereof.

8.3 Effect of Termination. Upon termination, all outstanding fees become immediately due and payable. Sections 6, 7, and 9 shall survive termination.

9. General

This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior or contemporaneous agreements. Amendments must be in writing and signed by both Parties. This Agreement shall be governed by the laws of the State of Delaware, without regard to its conflict-of-laws principles.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

VAPI, INC.	**EXAMPLE CORP**
By: ___________________________	By: ___________________________
Name: Jordan Patel	Name: Sasha Romero
Title: Chief Revenue Officer	Title: VP of Engineering
Date: January 1, 2026	Date: January 1, 2026